

24STCV25376 24STCV25376

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV25376 Hearing Date: July 28, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Jeanette Carranza

;

Plaintiff,

vs.

General Motors, LLC

;

Defendant.

Case No.:

24STCV25376

Hearing Date:

July 28, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION
FOR SUMMARY JUDGMENT

MOVING PARTY: Defendant General Motors LLC

RESPONDING
PARTY: Plaintiff Jeanette Carranza

Motion for Summary
Judgment

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Defendant General
Motors LLC ("Defendant") moves for summary judgment.

The court finds
that Defendant's separate statement does not comply with Code of Civil
Procedure section 437c and California Rules of Court rule 3.1350.

A motion for
summary judgment "shall include a separate statement setting forth plainly and
concisely all material facts that the moving party contends are
undisputed. Each of the material facts stated shall be
followed by a reference to the supporting evidence." (Code Civ. Proc., §
437c, subd. (b)(1).) "The requirement of a separate statement from the moving
party and a responding statement from the party opposing summary judgment
serves two functions: to give the parties notice of the material facts at issue
in the motion and to permit the trial court to focus on whether those facts are

truly undisputed.” (Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1210.) The separate statement must be presented in the two column format specified in the Rules of Court and must “separately” identify “[e]ach supporting material fact claimed to be without dispute with respect to the cause of action” –that is, each cause of action – “that is the subject of the motion.” (Cal Rules of Court, Rule 3.1350(d)(1)(B); subd. (h) [emphasis added].)

Defendant has not complied with Rule 3.1350 because Defendant’s separate statement does not separately identify each material fact claimed to be undisputed with respect to each cause of action that is the subject of the motion. Defendant instead set forth eight material facts without distinction as to each of the seven causes of action that are the subject of the motion. By failing to follow Rule 3.1350(d), the separate statement does not serve either of the essential functions of a separate statement. Rather than give fair notice to plaintiff and to the court of the facts which Defendant claims are material to each cause of action, the separate statement obfuscates that information in the highly fact-specific context of the summary judgment analysis.

Defendant bears the burden as the moving party to show that plaintiff’s causes of action have no merit. (Code Civ. Proc., § 437c, subd. (p)(2).) It is therefore Defendant’s burden, not the court’s, to identify the evidence to support Defendant’s motion. (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75 [“It is appellants’ duty to direct the court to evidence that supports their claims. It is not the court’s duty to rummage through the papers to construct or resuscitate their case”].)

The court therefore denies Defendant’s motion because Defendant’s separate statement does not comply with section 437c and California Rules of Court, rule 3.1350. (Code Civ. Proc., § 437c, subd. (b)(1) [“The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion”]; Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 876 [“Trial courts should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate statement”].)

ORDER

The court DENIES
defendant General Motors LLC's motion for summary judgment.

The court orders plaintiff
Jeanette Carranza to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 28, 2026

Robert B. Broadbelt III

Judge of the Superior Court